

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JENNIFER PADILLA,

Plaintiff,

-against-

CITY OF NEW YORK; OFFICER THURMAN
RANSOM; OFFICER DERRICK SUMMERS; JOHN
and JANE DOE 1-10,

Defendants.
-----X

Index No.:

Date Purchased:

Plaintiff designates KINGS
County as place of venue

SUMMONS

The basis of the venue is:
Situs of the Occurrence

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: March 24, 2021
New York, New York

Yours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEK

By: 
Gabriel P. Harvis, Esq.,
Attorneys for the Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

Defendants:

OFFICER THURMAN RANSOM
100 Church Street
New York, NY 10007

OFFICER DERRICK SUMMERS
100 Church Street
New York, NY 10007

CITY OF NEW YORK
100 Church Street
New York, NY 10007

Failure to respond will result in entry of a judgment against you by default with interest from March 28, 2018.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JENNIFER PADILLA,

Plaintiff,

-against-

Index No.:

Date Purchased:

VERIFIED COMPLAINT

CITY OF NEW YORK; OFFICER THURMAN
RANSOM; OFFICER DERRICK SUMMERS; JOHN
and JANE DOE 1-10,

Defendants.
-----X

NATURE OF THE ACTION

1. This is an action to recover money damages arising out of the violation of plaintiff's rights under the Constitution.

JURISDICTION AND VENUE

2. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988 and the Fourteenth Amendment to the Constitution of the United States.

3. Venue is proper in Kings County pursuant to C.P.L.R. § 504(3) as this is an action against officers of the City of New York, and Kings County is where the events giving rise to this action took place.

JURY DEMAND

4. Plaintiff demands a trial by jury in this action.

PARTIES

5. Plaintiff Jennifer Padilla is a resident of Kings County in the City and State of New York.

6. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. It operates the NYPD, a department or agency of defendant City of New York responsible for the appointment, training, supervision, promotion and discipline of police officers and supervisory police officers, including the individually named defendants herein.

7. The individual defendants at all times relevant herein, were officers, employees and agents of the NYPD. The individual defendants are sued in their individual capacities.

8. At all times relevant John and Jane Doe 1 through 10 were final policymakers of the NYPD. Plaintiff does not know the real names of defendants John and Jane Doe 1 through 10.

9. At all times relevant herein, defendants John and Jane Does 1 through 10 were acting as agents, servants and employees of the City of New York and the NYPD. Defendants John and Jane Doe 1 through 10 are sued in their individual capacities.

10. At all times relevant herein, all individual defendants were acting under color of state law.

STATEMENT OF FACTS

11. At approximately 5:25 a.m. on March 28, 2018, plaintiff was a prisoner in NYPD custody being transported by the individual defendants to the 63rd precinct from central booking.

12. Pursuant to widespread NYPD customs and practices that contradict official written policies, plaintiff was placed into a police van handcuffed and unseatbelted.

13. The police vehicle was then involved in a collision.

14. Ms. Padilla was seriously injured and in pain following the accident.

15. The individual defendants failed to call an ambulance to the scene following the motor vehicle accident.

16. The individual defendants failed to obtain *any* medical treatment for Ms. Padilla following the motor vehicle accident.

17. Eventually, another police vehicle arrived at the scene of the accident and took Ms. Padilla to the 63rd precinct. No medical treatment was offered or provided to Ms. Padilla.

18. The individual defendants took affirmative steps to conceal that an accident involving an unrestrained female prisoner had happened, including by misspelling plaintiff's name on the accident report.

19. Ms. Padilla suffered damage as a result of defendants' actions. Plaintiff was deprived of her liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, damage to her reputation and loss of income.

FIRST CLAIM

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20. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

21. The City, through its police department, contrary to formal written NYPD guidelines (*see* Patrol Guide § 208-06: "Arrests – Security Measures"), has a custom and/or practice of transporting prisoners in department vehicles without seat belts.

22. This custom and/or practice directly led to the severe injuries sustained by plaintiff on March 28, 2018.

23. The unidentified City policymaker defendants were aware prior to the date of plaintiff's injuries that citizens' constitutional rights were routinely being violated by this custom and/or practice, but failed to address it through appropriate training, supervision and discipline.

24. Prior to March 28, 2018, City policymakers knew to a moral certainty that officers' improper transport practices would result in the deprivation of constitutional rights, as happened in this case.

25. By the same token, it was obvious that supervision, in the form of, for example, spot checks would increase the rate of officer compliance with the relevant Patrol Guide section. Disciplining officers for seat belting violations would obviously discourage noncompliance.

26. The City has also been on notice through, *inter alia*, Section 1983 litigation, that the challenged practice was resulting in constitutional deprivations on a regular basis. *See, e.g., Joseph v. Lavelle*, 13 CV 7051 (KAM) (RLM).

27. Upon information and belief, police officers including the individual police officers named herein are inadequately trained, supervised and disciplined with respect to the constitutional use of seat belts during the transport of prisoners.

28. The need for more training on the issue of seat belting prisoners was so obvious and the inadequacy was so likely to result in constitutional violations that the policy makers of the City were deliberately indifferent in their failure to act.

29. Upon information and belief, a policy of and adequate training in properly restraining all prisoners inside of department vehicles could have prevented the injuries Ms. Padilla suffered.

30. The defendant City's failure to enforce its policy and train the defendants proximately caused plaintiff's physical injuries.

31. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM

Deliberate Indifference to Safety and Medical Needs

32. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

33. The individual defendants were aware of plaintiff's need to be restrained with her seatbelt fastened and indeed were required by the Patrol Guide and Constitution to secure her, but, pursuant to NYPD custom and practice, failed to do so, with deliberate indifference to plaintiff's safety.

34. The individual defendants were also aware that plaintiff needed immediate medical treatment following the motor vehicle accident but failed to obtain or even offer medical treatment to Ms. Padilla, with deliberate indifference to plaintiff's medical needs.

35. Accordingly, defendants violated the Fourteenth Amendment because they acted with deliberate indifference to plaintiff's safety and medical needs.

36. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

THIRD CLAIM
Failure to Intervene

37. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

38. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

39. Accordingly, the defendants who failed to intervene violated the Fourth, and Fourteenth Amendments.

40. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

DEMAND FOR RELIEF

WHEREFORE, plaintiff demands the following relief against the defendants, jointly and severally:

- (a) compensatory damages in an amount just and reasonable and in conformity with the evidence at trial;
- (b) punitive damages to the extent allowable by law;
- (c) attorneys' fees pursuant to 42 U.S.C. § 1988;
- (d) the costs and disbursements of this action;
- (e) interest; and
- (f) such other and further relief as this Court deems just and proper.

Dated: March 24, 2021
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: 

GABRIEL P. HARVIS

Attorneys for plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(P)(212) 532-1116

(F)(212) 532-1176

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)
) SS:
COUNTY OF WESTCHESTER)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis & Panek, attorneys of record for the plaintiff herein, affirms:

That he has read the attached SUMMONS AND VERIFIED COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: Briarcliff Manor, New York
March 24, 2021



Gabriel P. Harvis, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY**

JENNIFER PADILLA,

Plaintiff,

-against-

CITY OF NEW YORK; OFFICER THURMAN RANSOM; OFFICER
DERRICK SUMMERS; JOHN and JANE DOE 1-10,

Defendants.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005
212.532.1116

Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF WESTCHESTER, SS:

GABRIEL P. HARVIS, ESQ., the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a “certification” for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: Briarcliff Manor, New York
March 24, 2021



Gabriel P. Harvis, Esq.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005